

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: July 31, 2026

1	Uplift Law, PC vs. Kogym, LLC 2025-01486231	Claim of Exemption - Wage Garnishment Defendant / Judgment Debtors KOGYM, LLC and Larry Pollock's claim of exemption is DENIED. Judgment Debtors did not meet their burden showing a proper exemption applies here. There is no general federal statute that exempts SBA disaster loan proceeds from levy by judgment creditors. Unlike Social Security benefits, which are protected by a
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		specific federal anti-alienation provision under 42 U.S.C. § 407 that courts have held shields those funds from levy even after deposit into a bank account. Kilker v. Stillman (2015) 233 Cal.App.4th 320. SBA disaster loans—including those made under the Robert T. Stafford Disaster Relief and Emergency Assistance Act—lack a comparable statutory exemption from creditor execution. The federal statutes governing SBA disaster loans under 15 U.S.C. § 636 and disaster assistance under 42 U.S.C. § 5174 do not contain language prohibiting levy, garnishment, or execution by private creditors. While these statutes authorize the federal government to provide disaster relief loans and assistance to individuals and businesses affected by presidentially declared disasters, they do not create an exemption from state law creditor remedies. California’s exemption statutes similarly do not list federal disaster relief funds as exempt property. Ca. Civ. Pro. Section 704.070. Without a federal anti-alienation provision or a California statutory exemption specifically protecting disaster loan proceeds, such funds deposited into a business bank account remain subject to levy under California’s general rule that all property of the judgment debtor is subject to enforcement of a money judgment except as otherwise provided by law. Ca. Civ. Pro. Section 695.010. Uplift Law, PC shall give notice.
2	Vazirnia vs. Zandian 2023-01353637	1. Motion to Compel Further Responses to Special Interrogatories 2. Motion to Compel Production 3. Motion to Compel Response to Requests for Admissions Plaintiff Soha Vazirnia, individually and as trustee of the Reza B. Hosseini and Soha Vazirnia Revocable Trust dated June 12, 2019’s motion to compel further responses to

	her first sets of special interrogatories, requests for admission, and requests for production is GRANTED IN PART and DENIED IN PART, as follows. (See Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Defendant Amira Vazirnia is ORDERED to provide verified further responses without objections, which shall include the simultaneous production of any and all responsive documents, to the following discovery requests within 14 days of notice: (1) Plaintiff's first set of special interrogatories, Nos. 4, 5, 8, 9, 12, 16, 18, 19, and 22-25; (2) Plaintiff's first set of requests for admission, Nos. 1, 3, 4, 6, and 11; and (3) Plaintiff's first set of requests for production, Nos. 2, 4, 16, 35, and 36. The motion is otherwise denied. Plaintiff has failed to demonstrate good cause for requests for production Nos. 3, 5, 6, 9, 11, and 14. (See Code Civ. Proc., § 2031.310, subd. (b)(1).) These requests are egregiously overbroad and include requests for communications without any limitation whatsoever as to subject matter, and requests for any and all documents concerning every single possible item of personal property in the subject residential real property from 1/1/19 to date, regardless of whether plaintiff is claiming that it belongs to her and/or the trust. Plaintiff has failed to demonstrate good cause for the massive fishing expedition that these requests demand. Plaintiff should know what property belongs to her and/or the trust, and what property the defendants allegedly stole, and in fact has already identified/described many of the subject belongings in an exhibit attached to her complaint. Plaintiff must properly limit her discovery to what is relevant to the subject matter involved and reasonably calculated to lead to the discovery of admissible evidence. (See Code Civ. Proc., § 2031.310, subd. (b)(1) [good cause requirement]; <i>Glenfed Develop. Corp. v. Superior Court</i> (1997) 53 Cal.App.4th 1113, 1117 [good cause]; <i>Calcor Space Facility</i>,
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		Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 224 [motion must be supported by factual evidence by way of declarations setting forth specific facts justifying each category of materials sought to be produced]; see also Clark Decl., in passim; Compl. ¶¶ 11-16, Ex. 2.) Sanctions are DENIED as plaintiff has failed to comply with Code of Civil Procedure section 2023.040. (See Code Civ. Proc., § 2023.040 ["A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought."].) Plaintiff shall give notice.
3	Satar vs. BMW of North America, LLC 2021-01192103	Motion to Strike or Tax Costs Defendant BMW of North America, LLC's Motion to Tax Costs is GRANTED in part and DENIED in part. Code of Civil Procedure § 1032, subdivision (b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code of Civil Procedure Section 1033.5 sets forth the items that are allowable as costs. Items not mentioned in section 1033.5 may be allowed or denied in the court's discretion. Additionally, Code of Civil Procedure section 1033.5(c) states that allowable costs shall be reasonable in amount and "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a

	motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them as costs. (Ibid.) But conclusory assertions alone are not enough to cause this shift to happen. "[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable." (Seever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.) Item 1 - Filing and Motion Fees: Defendant seeks to tax costs of \$1,040. Defendant contends that other than the initial filing fee of \$435 and \$60 to file a fee motion, the remaining costs should be stricken because the motions were unsuccessful. Defendant cites to no case law that supports a finding that a prevailing party may not cover costs for unsuccessful motions. There is no indication the motions were not reasonably filed. Accordingly, the request to reduce Item 1 costs is DENIED. Item 4 – Deposition Costs: Code of Civil Procedure section 1033.5, subdivision (a)(3) allows the recovery of costs for: "Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed." "The burden of proof that the deposition was unnecessary or that the costs of taking the deposition were unreasonable is on the party seeking to have that item taxed or reduced." (County of Kern v. Ginn (1983) 146 Cal.App.3d 1107, 1113 (holding deposition of defendant and defendant's daughter were necessary thus allowable costs].)
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		Defendant contends Plaintiff seeks to recover the costs of taking unnecessary depositions of service advisors and technicians. Other than argument, Defendant provides no basis for its opinion. Moreover, it is not unreasonable to depose service advisors and technicians regard their repair orders. As for the deposition of Plaintiff's expert Brent Marsh, Defendant contends this cost is duplicative of costs claimed in Item 8. However, the costs claimed in Item 4 are for the court reporter and transcript costs, not the expert fees charged by Marsh for his deposition. Accordingly, the request to reduce Item 4 costs is DENIED. Item 5 – Service of Process Plaintiff seeks to recover \$2,113.50 for serving multiple subpoenas on Sterling BMW, and BMW of Fremont, and their employees despite not calling any of those witnesses to testify during the trial. Defendant contends the only service of process cost that Plaintiff can be said to have reasonably incurred was \$40 for serving the summons and complaint on BMW NA. In Doe v. Los Angeles County Dept. of Children & Family Services (2019) 37 Cal.App.5th 675, the plaintiff challenged the recovery of fees related to service of process for witnesses who were never deposed and never testified at trial. (Id. at 694.) The court found that the Code of Civil Procedure does not limit recovery of service of process fees to witnesses used at trial" and awarded such service fees. (Ibid.) Accordingly, the request to reduce Item 5 costs is DENIED. Item 8 – Witness Fee Expert witness fees are generally not recoverable as costs unless authorized by statute. (Civ. Proc. Code § 1033.5(b)(1).) In this case, expert witness fees are expressly
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		recoverable by a prevailing buyer under Civil Code §1794(d). Defendant objects to the expert fees on the ground that Plaintiff has failed to show that the time and hourly rates charged by their expert Marsh were reasonable. The invoices submitted by Plaintiff regarding Marsh's service indicate his hourly rate is reasonable and the hours charged are related to this case. Accordingly, the request to strike Item 8 fees is DENIED. Item 11 – Court Reporter Fees Per Code of Civil Procedure section 1033.5, recoverable costs include "Court reporter fees as established by statute." (Code Civ. Proc., § 1033.5, subd. (a)(11).) Additionally, "costs for the services of the official court reporter shall be recoverable as taxable cost by the prevailing party as otherwise provided by law." (Gov. Code, § 68086, subd. (c).) Similarly, "[t]he fees and charges of the certified shorthand reporter shall be recoverable as taxable costs by the prevailing party as otherwise provided by law." (Gov. Code, §68086, subd. (d)(2).) Defendant contends the court reporter fees are excessive and inconsistent with the Orange County Superior Court fee schedule. Court reporters receive \$430.00 for proceedings lasting half a day; \$860.00 for proceedings lasting a full day and a per diem of \$30.00 for proceedings under 1 hour. "[I]f an official court reporter is not available, a party may arrange for, at the party's expense, the presence of a certified shorthand reporter to serve as an official pro tempore reporter. At the arranging party's request, the court shall appoint the certified shorthand reporter to be present in the courtroom and serve as the official reporter pro tempore unless there is good cause shown for the court to refuse that appointment. The fees and charges of the certified shorthand reporter shall be
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		recoverable as taxable costs by the prevailing party as otherwise provided by law.” (Gov. Code § 68086(d)(2).) Plaintiff contends she is entitled to recover her court report costs because an official court reporter was not available. Because such costs are compensable, the request to strike such costs is DENIED. Item 14 – Electronic Filing Defendant argues Plaintiff’s claim of \$1,347.72 in fees for electronic filing and service are excessive on their fact and not supported by any documentation. Other than argument, Defendant provides no basis for its opinion. Fees for the electronic filing or service of documents through an electronic filing service provider are recoverable costs. (Code Civ. Proc. §1033.5(a)(14).) Accordingly, the request to strike Item 14 costs is DENIED. Item 15 – Other Costs Defendant objects to Plaintiff’s request for “other” costs which include Westlaw research charges, food, travel and lodging expenses and “anticipated” expenses. “Fees for legal research, computer, or otherwise, may not be recovered under section 1033.5.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 776.) Therefore, \$965.18 in Westlaw expenses is stricken from Plaintiff’s recoverable costs. As for costs related to “Food & Parking,” [r]outine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the litigation.” (Id. at 775-776.) Meal expenses are also not justified as “necessary to conduct the litigation” since attorneys have to eat, whether they are conducting litigation or not.” (Id. at 774-775.) Moreover, Plaintiff’s counsel’s office is located in Laguna Beach,
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		and attendance at court did not require out-of-town travel. Therefore, \$330.55 in "Food & Parking" is stricken from Plaintiff's recoverable costs. It is unclear what "anticipated" costs Plaintiff seeks in connection with the attorney fee motion and motion to tax costs. Therefore, \$300 in "anticipated" costs is stricken from Plaintiff's recoverable costs. Accordingly, the request to strike Item 15 costs in the amount of \$1,595.73 is GRANTED. Based on the foregoing, the Court taxes a total of \$1,595.73 in costs and awards Plaintiff \$48,336.62. Moving Party shall give notice.
4	Doe vs. Unruly Agency LLC 2023-01345140	1. Motion to Compel Production 2. Ex Parte Application Plaintiff Jane Doe's Motion to Compel Defendant Unruly Agency LLC to Produce Further Responses to Plaintiff's Request for Production of Documents, Set Two is GRANTED. (Code Civ. Proc. §2031.310.) Within 30 days of this ruling, Defendant Unruly Agency LLC shall produce further verified responses without objection to Plaintiff's Request for Production of Documents, Set Two, Request Nos. 9-11 and 13-25. Within 45 days of this ruling, Defendant Unruly Agency LLC shall produce all responsive documents identified in their supplemental responses. To the extent any document is withheld on the basis of a claim of privilege, Defendant Unruly Agency LLC shall provide a privilege log that complies with the requirements of Code Civ. Proc. §2031.240, subd. (c).

		Defendant shall pay monetary sanctions in the amount of \$2,515 within 45 days of this ruling. ***All lead counsel are ordered to appear for the Ex Parte Application. Refer to ROA 426.*** Plaintiff shall provide notice.
6	Mitchell vs. Deutsche Bank National Trust Company 2022-01265002	1. Demurrer to Amended Complaint 2. Motion for Bifurcation 3. Motion for Judgment on the Pleadings 1. Demurrer to Amended Complaint Defendants Deutsche Bank Trust Company Americas, erroneously named as Deutsche Bank Trust Company America, and Deutsche Bank Americas Holding Corp.'s demurrer to the Second Amended Complaint [SAC] is SUSTAINED in its entirety, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Moving defendants' request for judicial notice of Ex. A to the Morris Decl. is GRANTED, limited to the fact of recordation, but not the truth of its contents. (Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 264-265 [judicial notice of recorded documents]; Poseidon Development, Inc. v. Woodland Lane Estates, LLC (2007) 152 Cal.App.4th 1106, 1117 ["the fact a court may take judicial notice of a recorded deed, or similar document, does not mean it may take judicial notice of factual matters stated therein"].) The remainder of moving parties' request for judicial notice, as well as

		responding parties' request for judicial notice, are DENIED. (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 889 [while judicial notice may be taken of the existence of government websites, "the same is not true of their factual content ... we know of no 'official Web site' provision for judicial notice in California"]; Searles Valley Minerals Operations, Inc. v. State Bd. of Equalization (2008) 160 Cal.App.4th 514, 519 ["although it might be appropriate to take judicial notice of the existence of the websites, the same is not true of their factual content"].) These moving parties were named as Doe defendants. However, the allegations as to Doe defendants (SAC, ¶¶ 6-10), are largely conclusions without supporting facts, which are insufficient. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967 [court "treats the demurrer as admitting all material facts properly pleaded ... [t]he court does not, however, assume the truth of contentions, deductions or conclusions of law"].) While agency allegations are ultimate facts (Skopp v. Weaver (1976) 16 Cal.3d 432, 437), the general agency allegations at ¶ 7 of the SAC are insufficient, in the face of the other extensive factual allegations against named defendants (SAC, ¶¶ 11-33), and the absence of any charging factual allegations against Doe defendants. (Gentry v. Ebay, Inc. (2002) 99 Cal.App.4th 816, 827 [specific factual allegations control over inconsistent general allegations].) Plaintiffs shall file a Third Amended Complaint, if at all, within 10 days. 2. Motion to Bifurcate Defendants / cross-defendants Deutsche Bank National Trust Company, as Trustee for
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		NovaStar Mortgage Funding Trust, Series 2007-1 NovaStar Home Equity Loan Asset-Backed Certificates, Series 2007-1, PHH Mortgage Corporation, and Western Progressive LLC's motion to bifurcate and try equitable issues first is DENIED, without prejudice. Moving parties have not presented sufficient evidence showing that trying equitable causes of action first will further convenience, avoid prejudice, or be conducive to expedition and economy. (Code Civ. Proc., §§ 597, 598, 1048, subd. (b).) However, the Court will consider revisiting the issue via a Motion In Limine prior to trial, upon a better evidentiary showing by Moving Parties. 3. Motion for Judgment on the Pleadings Cross-complainant George Goubran's motion for judgment on the pleadings as to the 1st through 7th causes of action in his verified First Amended Cross-complaint [FACC] is DENIED. (Code Civ. Proc., § 438 [authorizing motion]; Engine Manufacturers Assoc. v. State Air Resources Bd. (2014) 231 Cal.App.4th 1022, 1034 ["Motions by a plaintiff for judgment on the pleadings ... are the equivalent of a demurrer to an answer ... the appellate court will assume the truth of all facts properly pleaded in the answer and will disregard the controverted allegations of the complaint ... Such a motion must be denied if the defendant's pleadings raise a material issue or set up affirmative matter constituting a defense;" internal citations omitted.) Both parties' requests for judicial notice of various recorded documents pertaining to the subject property are GRANTED, limited to the fact of recordation, but not the truth of their contents. (Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 264-265 [judicial notice of recorded documents]; Poseidon Development, Inc. v. Woodland Lane Estates, LLC (2007) 152 Cal.App.4th
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		1106, 1117 [“the fact a court may take judicial notice of a recorded deed, or similar document, does not mean it may take judicial notice of factual matters stated therein”).) Moving defendant’s remaining requests for judicial notice of documents filed in this action is GRANTED, limited to the fact of filing, but not of the truth of their contents. (Evid. Code, § 452, subd. (d)(1) [court records]; In re Vicks (2013) 56 Cal.4th 274, 314 [“while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files;” emphasis in original; internal citation omitted]; Williams v. Wraxall (1995) 33 Cal.App.4th 120, 130, FN 7 [judicial notice of the truth of facts in court documents generally limited to orders, statements of decision, and judgments].) Judgment on the pleadings is DENIED, as the verified Answer to the verified First Amended Cross-complaint states sufficient facts denying moving party’s contention that the March 2014 reconveyance extinguished all rights and obligations under the first loan and deed of trust, on which all of moving party’s claims are based. (Answer, ¶¶ 10-12, 16-17, 19, 22-26, 28-33, 40, 42, 44, 49, 51-54, 57, 62, 65-67, 72, 74, 78, 79, 83-87, 90, 92-93; Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216 [“judgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution”].) Further, whether cross-defendants’ ability to claim any rights under the first loan and deed of trust are barred by laches, waiver, or estoppel are all questions of fact for the trier of fact, and may not be determined as a matter of law unless the facts are undisputed, which is not the case here. (Schabarum v. California Legislature, supra at 1216 [denial of motion upon sufficient allegations of factual disputes]; Estate of Kampen (2011) 201 Cal.App.4th 971, 997 [“the existence of laches is a question of fact to be determined by the trial court in light of all of the
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		applicable circumstances ... [h]owever, the issue may be addressed as one of law if the facts are undisputed”]; In re Campbell (2017) 11 Cal.App.5th 742, 755 [“The issue of a waiver is generally a question of fact”]; Mills v. Forestex Co. (2003) 108 Cal.App.4th 625, 652 [“In the usual case, estoppel is a question of fact to be resolved by the trier of facts ... [h]owever, when the facts are undisputed, the existence of an estoppel is a question of law;” internal citations and quotation marks omitted.) Similarly, whether cross-defendants’ ability to claim any rights under the first loan and deed of trust is barred by any applicable statute of limitations, does not “clearly and affirmatively” appear from the face of the pleadings. (Geneva Towers Ltd. Partnership v. City of San Francisco (2003) 29 Cal.4th 769, 781; emphasis added, internal citation omitted.) Plaintiffs shall give notice of all the above.
7	Cruz vs. PAC Auto Group, Inc.	Petition to Confirm Arbitration Award Plaintiffs Anthony Cruz and Veronica Solis Beas’s petition/motion to confirm arbitration award is GRANTED, as follows. (See Code Civ. Proc., §§ 1286, 1286.6; see also Pacific Law Group: USA v. Gibson (1992) 6 Cal.App.4th 577, 580 [“Confirmation is mandatory under Code of Civil Procedure section 1286” et seq. unless the court corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding; nothing in these sections limits the confirmation of arbitration awards based on whether the respondent has/has not satisfied its payments obligations under the award].) The Court confirms the arbitration award as made in the final award dated 6/18/26, which adopts and incorporates the interim award

		issued on 4/21/26, and enters judgment pursuant thereto, as follows: (1) As of the issuance of the interim award on 4/21/26, "[t]he contract dated September 20, 2020 ('Contract'), by which Claimants [Anthony Cruz and Veronica Solis Beas] purchased a used 2017 Ford Mustang, CA VIN no. xxxxxxxxxxxxxxxx692 ('Vehicle') from [PAC Auto Group, Inc. (PAC)] and the purchase financing for the Vehicle arranged by PAC are rescinded. Claimants shall have no further obligation to re-pay any monies to [Ally Bank, erroneously sued as "Alley Financial, Inc." (Ally),] or PAC to finance the purchase of the Vehicle, which obligation is extinguished. There shall be no negative credit reporting by PAC or Ally effecting Claimants because of the rescission of the Contract." (Pet. at att. 8(c) [final award, p. 2].) (2) As of the issuance of the interim award on 4/21/26, "Claimants were ordered to make the Vehicle immediately available to PAC for pick-up (costs of pick-up to be borne by PAC).... The Interim Award also provided that prior to pick-up of the Vehicle, PAC was to prepare and Claimants to execute all documents reasonably necessary to transfer ownership of the Vehicle to PAC," and that PAC and Ally "shall pay \$33,886.38 to Claimants within thirty days from the date of th[e] Interim Award." (Pet. at att. 8(c) [interim award, pp. 7, 10-11, see final award, p. 2].) (3) As of the issuance of the interim award on 4/21/26, "[Ford Motor Company (Ford)] was ordered to pay Claimants \$12,445.80 for breach of warranty within thirty days of the Interim Award." (Pet. at att. 8(c) [final award, p. 2].) (4) "Notwithstanding anything to the contrary in the Interim Award, Ally's liability was not to exceed the amount of its investment, \$33,481.73, exclusive of costs and attorney's fees." (Pet. at att. 8(c) [final award, p. 2].) (5) "Claimants are awarded jointly and severally against PAC and Ally \$49,709.00 in attorney's fees." (Pet. at att. 8(c) [final award, p. 6].)
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		(6) "Claimants are awarded jointly and severally against Ford, PAC and Ally \$8,677.07 in costs. As between each other, Ford shall be liable for \$4,338.54 of the costs, PAC shall be liable for \$2,169.27 of the costs, and Ally shall be liable for \$2,169.26 of the costs." (Pet. at att. 8(c) [final award, p. 6].) (7) "The administrative fees of the American Arbitration Association (AAA) totaling \$2500 and the compensation of the Arbitrator totaling \$7030 shall be borne and paid as incurred." (Pet. at att. 8(c) [final award, p. 6].) All remaining terms of the interim award and final award are also confirmed and incorporated into the judgment. Plaintiffs' request for statutory interest on the award pursuant to Civil Code section 3287, subdivision (a) (section 3287(a)) at the rate of 10% per annum is also GRANTED, as follows (see <i>Britz, Inc. v. Alfa-Laval Food & Dairy Co.</i> (1995) 34 Cal.App.4th 1085, 1106-1107; accord, <i>Pierotti v. Torian</i> (2000) 81 Cal.App.4th 17, 27): (1) Interest in the total amount of \$306.24 on the restitution award of \$33,886.38 is granted in favor of plaintiffs, and jointly and severally against PAC and Ally. This amount has been calculated from the date this payment was due on 5/21/26 (30 days after issuance of the interim award on 4/21/26), through the date of the payment on 6/22/26. (See Pet. at att. 8(c) [interim award, pp. 7, 10-11, and final award, p. 2]; Cook Decl. ¶ 6.) (2) Interest at the rate of 10% per annum is granted in favor of plaintiffs on the \$12,445.80 damages award on the breach of implied warranty claim against Ford, from 5/21/26 to the entry of judgment. (See Pet. at att. 8(c) [interim award, pp. 10-11, final award, p. 2]; see also Cook Decl. ¶¶ 6, 8, 9 [Ford has failed to make any payments to date].) Interest at the rate of 10% per annum on \$12,445.80 comes out to a daily rate of \$3.41 (\$12,445.80 x 0.10 percent, divided by 365 days).
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		(3) Interest in the total amount of \$163.44 on the attorney fees portion of the award is granted in favor of plaintiffs, and jointly and severally against PAC and Ally. (See Pet. at att. 8(c) [final award, p. 6]; Britz, supra, 34 Cal.App.4th at p. 1107 [prejudgment interest is available on the entire arbitration award, including attorney fees contained in the award].) This amount has been calculated from 6/25/26, the day after the final award was served on the parties (see Cook Decl. ¶ 7), to the date the fees were paid on 7/6/26 (id. ¶ 8). (4) Interest in the total amount of \$7.08 in favor of plaintiffs and against PAC on PAC's portion of the costs award, calculated from 6/25/26 (day after final award was served), to the date the costs were paid on 7/6/26. (See Pet. at att. 8(c) [final award, p. 6]; Cook Decl. ¶¶ 7-8.) (5) Interest in the total amount of \$7.08 in favor of plaintiffs and against Ally on Ally's portion of the costs award, calculated from 6/25/26 (day after final award was served), to the date the costs were paid on 7/6/26. (See Pet. at att. 8(c) [final award, p. 6]; Cook Decl. ¶¶ 7-8.) (6) Interest at the rate of 10% per annum is granted in favor of plaintiffs and against Ford on Ford's \$4,338.54 portion of the costs award, from 6/25/26 (day after final award was served) to the entry of judgment. (See Pet. at att. 8(c) [final award, p. 6]; Cook Decl. ¶¶ 6, 8, 9 [Ford has failed to make any payments to date].) Interest at the rate of 10% per annum on Ford's \$4,338.54 portion of the costs comes out to a daily rate of \$1.19 ($\\$4,338.54 \times 0.10$ percent, divided by 365 days). Finally, plaintiffs' requests for costs and attorney fees with incurred with respect to the instant petition to confirm arbitration award is GRANTED, as follows: (1) Plaintiffs are granted costs in the amount of \$60 jointly and severally against PAC, Ally, and Ford (see Code Civ. Proc., § 1293.2; Marcus & Millichap Real Estate Investment Brokerage Co. v. Woodman
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		Investment Group (2005) 129 Cal.App.4th 508, 513); and (2) Plaintiffs are granted attorney fees in the amount of \$2,075 jointly and severally against PAC and Ally (see Civ. Code, § 1794, subd. (d)). Plaintiffs shall give notice of all of the above and prepare a proposed judgment on the complaint that incorporates all of the foregoing verbatim, within 10 days.
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